

23VECV03853 23VECV03853

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23VECV03853 Sierra v Whole Foods

[TENTATIVE] ORDER: Defendant/Doe 1 Mrs. Gooch's Natural Food Markets, Inc.'s Demurrer to the Second Amended Complaint is SUSTAINED WITHOUT LEAVE TO AMEND as to the first and eleventh causes of action and otherwise OVERRULED.

Defendant/Doe 1 Mrs. Gooch's Natural Food Markets, Inc.'s Request for Judicial Notice is GRANTED but not as to facts in dispute or hearsay.

Introduction

Defendant/Doe 1 Mrs. Gooch's Natural Food Markets, Inc. (Defendant) demurred to Plaintiff Orfelina Sierra's (Plaintiff) Second Amended Complaint (SAC).

Defendant's demurrer placed into issue the first cause of action (COA) for promissory fraud - deceit, the third COA for unpaid wages under the Labor Code, the fourth COA for sexual harassment, the fifth COA for discrimination under the Fair Employment and Housing Act (FEHA), the sixth COA for failure to prevent under FEHA, the seventh COA for retaliation, the eighth COA for unfair business practices (UCL), and the eleventh COA for defamation.

AI Hallucinations or typos?

The court is unclear if two case citations in the demurrer & reply are hallucinations or if the incorrect citations were just typos. Defendant's Demurrer and Reply cited to "Kelly v. General Telephone Co. (1982) 136 Cal.3d 278". (See Demurrer pgs. 17:13-14 and 18:2 & Reply pgs. 8:25, 9:6, and 9:23.] The correct

citation is 136 Cal.App.3d 278. Defendant's Demurrer cited to "Wright v. FMC Corp (1978) 81 Cal.3d 777". (See Demurrer pg. 12:11.) However, the correct citation is 81 Cal.App.3d 777. Also, the opinions of the two cases are workers' comp opinions.

It would be better to get an explanation from counsel. Counsel are required to be personally responsible to check every citation in their papers.

Discussion

Defendant asserted that the first COA for promissory fraud was barred by the Workers Compensation Act (WCA) and failed to plead sufficient facts. Defendant's argument as to WCA exclusivity relied upon several cases: Apple v. Lee Swett Livestock Co. (1987) 192 Cal.App.3d 466, 473; Spratley v. Winchell Donut House, Inc. (1987) 188 Cal.App.3d 1408, 1417; and Wright v. FMC Corp. (1978) 81 Cal.App.3d 777, 779. However, the Court does not find the case law authority to be applicable to the facts alleged in the instant action. Plaintiff alleged that the fraud stems from misrepresentations related to "starting salary, raises, bonuses, promotions to higher level positions beyond a team member and various other benefits incidental to employment." (SAC par. 30.) Nothing in the COA's allegation regarding false promise relates to the alleged sexual assaults by coworkers and a supervisor and/or Defendant's failure to address and/or prevent the sexual assaults. Because the three cases cited by Defendant did not involve fraud claims stemming from false promises related to salary, bonuses, and promotions or even coworker/supervisor sexual assaults, the three cases are inapplicable to the instant action. Further, Defendant's argument was reviewed at the prior demurrer to the First Amended Complaint (FAC) and was found not to be persuasive for the same reason.

The Court further noted that, to the extent the false promise could be grounded upon the sexual assaults, a plain reading of the WCA's exclusivity rule shows that physical assaults by the employer are exempted. (Lab. Code, sec. 3602(b)(1).) The sexual assault by the supervisor is grounds to show that the fraud claim is not covered under the WCA exclusivity rule.

Defendant then argued that the false promise COA failed to plead specific facts related to the false promises. Plaintiff added facts to allege the persons making the false promises (Manager Mark Wesson or Adam Ramirez), the when (May 7, 1996), and to whom (Plaintiff). However, the SAC failed, again, to plead the “how”, the “where” and “by what means” the false promises were made. Further, the false promise COA failed to plead specific facts as to Defendant's then-existing intent not to perform. These are the same pleading defects the Court ruled upon at the prior demurrer to the FAC. Plaintiff had an opportunity to cure the pleading defect but failed to do so. Plaintiff's reliance upon the allegations in the SAC to argue that the false promise COA being sufficiently plead with supportive facts is unpersuasive. Because Plaintiff could not cure the pleading defect as to the first COA, the demurrer to the first COA is persuasive.

The demurrer to the first COA for false promise is
SUSTAINED WITHOUT LEAVE TO AMEND.

Defendant argued that the fourth COA for sexual harassment, the fifth COA for discrimination under the Fair Employment and Housing Act (FEHA), the sixth COA for failure to prevent under FEHA, and the seventh COA for retaliation failed to: (1) exhaust administrative remedies, (2) is time-barred, and (3) failed to plead sufficient supportive facts.

Defendant argued that Plaintiff did not file a complaint with the Civil Rights Department (CRD, formerly known as the Department of Fair Employment Housing) based upon Defendant's search of the CRD records. (RJN Exhs. C and D.) However, this is a fact in dispute and Defendant's RJN cannot be grounds to sustain the demurrer. Plaintiff expressly alleged that they received a Right to Sue Notice from the CRD on May 9, 2023. (SAC par. 28.) For demurrer purposes, the fact allegation is deemed true. Defendant's argument disputing the veracity of this fact allegation is not proper grounds for a demurrer. The argument is not persuasive.

Defendant argued that the claims are untimely per the three-year statute of limitations (SOL) based upon the grounds that Plaintiff failed to file a claim with CRD and any attempt at filing of a claim at this time would be time-barred. (Gov. Code, sec. 12960(e).) However, as reviewed above, the argument is not proper for a demurrer and is

not persuasive because it disputes the veracity of the express allegation that a Right to Sue Notice was received by Plaintiff.

Defendant's contention that the COAs do not plead sufficient facts to support the COAs lacks any argument. Without any application of fact to law, Defendant failed to meet their initial burden to show that a dispute as to the sufficient fact pleading of the COAs exists. To the extent that the last argument is again based upon the contention that Plaintiff did not obtain a Right to Sue Notice, the argument, as reviewed above, is unpersuasive.

Defendant's demurrer to the fourth, fifth, sixth, and seventh COAs is OVERRULED.

As to the third COA for unpaid wages under the Labor Code and the eighth COA for unfair business practices (UCL), Defendant argued that the claims are barred by res judicata. Defendant cited to a prior Private Attorney General Act (PAGA) class action lawsuit, *Poledouris v. Mrs. Gooch's Natural Food Markets, Inc.* (Super. Ct. of L.A. County, December 18, 2025, 19STCV10444.) (Poledouris Action.) (Request for Judicial Notice (RJN) Exhs. A and B.) However, Defendant's contention requires a review of facts that are not within the four corners of the pleading. Defendant asserted that Plaintiff did not opt-out of the class action when notice was provided to Plaintiff. However, there are no facts within the SAC that support the contention that Plaintiff received notice or that Plaintiff did not opt-out. On this defect alone, the argument is not persuasive. Further, Plaintiff alleged that she was hired on May 7, 1996, and terminated on March 13, 2023. (SAC pars. 10 and 26.) In the Poledouris Action, the Class members included non-exempt, hourly paid employees in the State of California at any time during the period from March 27, 2015, through February 2, 2025. (RJN Exh. B, par. 10.) Even if it was alleged within the SAC that Plaintiff received notice and did not opt out, the claims in the SAC go beyond the definition of the Class members in the Poledouris Action since Plaintiff's term of employment is more than the dates of employment at issue in the Poledouris Action. Because the dates of employment do not exactly match, the claim preclusion argument is insufficient to resolve the entire claim alleged in the SAC and cannot be grounds to sustain the demurrer.

The demurrer to the third and eighth COAs is OVERRULED.

Defendant argued that the eleventh COA for defamation failed to cure the prior pleading defect by failing to specifically identify the statements that were false/defamatory and/or who made the statements to determine if they are attributable to Defendant. Plaintiff's allegations only allege that Plaintiff would find store items in her personal bag. The store items would be placed in Plaintiff's personal bag by other staff members to get Plaintiff in trouble and/or terminated for suspicion of or actual theft. Plaintiff alleged that she would complain to and report the misconduct of her coworkers to her managers and supervisors. However, Plaintiff's managers and supervisors would not address, reign in, or stop the misconduct of her coworkers. (SAC par. 81.) The pleading defect, as argued by Defendant, was raised at the prior demurrer to the FAC. The allegations are still defective because there is no express allegation asserting that Defendant called her a "suspect" or a "thief". The misconduct of her coworkers to get the supervisors/managers to discipline/terminate Plaintiff as a "thief" is insufficient to allege a defamatory statement because there are no facts to support the contention that Defendant actually called her a "suspect" or "thief". Plaintiff failed to plead facts to allege that a defamatory statement was made against her. The pleading defect is the same pleading defect found in the FAC. Plaintiff failed to plead additional facts to cure the prior pleading defect. The demurrer is persuasive. The Court does not disagree with Plaintiff's contention that false accusations of theft would be sufficient to support a defamation claim. However, Plaintiff failed to allege facts to plead that Defendant called her a thief.

The demurrer to the eleventh COA is SUSTAINED
WITHOUT LEAVE TO AMEND.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.